Supreme Court Says California Can Keep Counting Its Ballots

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The United States Supreme Court has said no to a last-minute request to change how California counts votes in the **midterm** elections.

The **midterm** elections decide which political party controls Congress for the last two years of President Donald Trump's second term. Voting ends on Tuesday, November 3.

The Justice Department had asked the court to set aside 20,000 **ballots**. It said those **ballots** may have been issued to people who are not United States citizens. On Monday, the court answered with a one-line order denying the request. Lower-court rulings will stand, and the effort to **disqualify** those **ballots** has essentially ended.

California is the most **populous** state, with about 23 million people on its voting register. By Sunday night, more than six million mail-in **ballots** had been received, according to the California secretary of state's office.

Last month, the Justice Department sent letters to California's secretary of state and to Los Angeles County's **registrar**, asking them to separate the 20,000 **ballots**. On Friday, a federal appeals court declined that request, amid concern that eligible voters could lose their votes and that separating **ballots** while voting is underway is not workable.

The request was part of a years-long campaign by Trump and his administration against what they describe as widespread voter fraud, even though research has found such fraud to be extremely rare. Trump has repeatedly claimed that Democrats steal elections by allowing immigrants to vote illegally, and he has blamed mail-in voting, which is permitted in many states.

Last week, district judge David Carter described the government's move in California as an "ongoing pattern of attempted election **interference**." He said that never before in American history had the federal government, on the eve of an election, tried to press a state and local government to abandon their own election procedures.

Word Treasure

midterm -- An election held in the middle of a president's term, when voters choose members of Congress.

ballots -- The papers or forms voters use to mark their choices in an election.

disqualify -- To rule that something does not count or that someone cannot take part.

registrar -- An official who keeps official lists, here the list of registered voters.

populous -- Having a large population, or many people living there.

interference -- Getting involved in something in a way that tries to change or disturb it.

Background you need

In the United States, voters choose members of Congress in midterm elections, which happen in the middle of a president's term.

Mail-in ballots are votes sent by post instead of cast in person at a polling place.

Courts can be asked to set aside ballots, but judges weigh whether that would unfairly stop eligible voters from having their votes counted.

The Supreme Court is the highest court in the United States, and its decisions stand above those of lower courts.

Break it down

LEAD: The Supreme Court denied a last-minute request to change how California counts votes.
KEY EVENT: The Justice Department asked the court to set aside 20,000 ballots it said may have been issued to non-citizens.
+- WHO: The Supreme Court, the Justice Department, and California election officials.
+- WHEN: Monday, on the eve of voting ending Tuesday, November 3.
EVIDENCE: California has about 23 million registered voters, and more than six million mail-in ballots had been received by Sunday night.
OPEN QUESTION: Lower-court rulings will stand, ending the effort to disqualify those ballots.

Why it matters

The ruling decides whether thousands of California ballots stay in the count, and it shows how courts can protect eligible voters' ballots during an election.

Test what you remember

1. What did the Supreme Court deny on Monday?

(A) A request to move the election date
(B) A request to set aside 20,000 California ballots
(C) A request to count all California votes twice
(D) A request to close California polls early

2. Why did the Justice Department want those ballots set aside?

(A) Because it said they may have been issued to non-citizens
(B) Because they were damaged by rain
(C) Because they were counted twice
(D) Because they were mailed too late

3. How many people are on California's voting register, according to the article?

(A) About six million
(B) About 20,000
(C) About one million
(D) About 23 million

4. How many mail-in ballots had been received by Sunday night?

(A) Exactly 20,000
(B) About 23 million
(C) More than six million
(D) Fewer than one million

5. What did the federal appeals court do on Friday?

(A) It ordered a recount
(B) It ordered the ballots set aside
(C) It declined the request to separate the ballots
(D) It stopped all voting in California

6. What does research say about the voter fraud described by Trump and his administration?

(A) It has never been studied
(B) It is extremely rare
(C) It affects most mail-in votes
(D) It happens in every election

Answer key (try the quiz first!): 1: B 2: A 3: D 4: C 5: C 6: B

Questions to think about

1. The Justice Department: Asked for 20,000 ballots to be set aside, saying they may have been issued to non-citizens.

2. Officials concerned about eligible voters: Expressed concern that eligible voters could lose their votes and that separating ballots during voting is not workable.

3. Trump and his administration: Describe a years-long campaign against what they call widespread voter fraud.

4. District judge David Carter: Described the move as an ongoing pattern of attempted election interference.

MY THOUGHTS (at least 20 words):